

24TRCV02830 24TRCV02830

County: los-angeles

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Case Number: 24TRCV02830 Hearing Date: June 23, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

JOHN S. CLARK

;

Plaintiff,

vs.

MCDONALDS RESTAURANTS OF

CALIFORNIA, INC.

;

Defendant.

Case

No.:

24TRCV02830

Hearing

Date:

June

23, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

cross-defendant

southwest patrol, inc. AND DEFENDANT MCDONALD'S RESTAURANT OF CALIFORNIA,

INC.'S motion for good faith settlement

MOVING PARTY: Cross-Defendant, Southwest

Patrol, Inc. and Defendant, McDonald's Restaurant of California, Inc.

RESPONDING

PARTY: Defendant, Unified Protective

Services, Inc.

(1) Cross-Defendant Southwest Patrol, Inc. and

Defendant McDonald's Restaurant of California, Inc.'s Motion for Good Faith

Settlement is DENIED pursuant to title

11 of the United States Code section 362, subdivision (a).

The Court considers the moving

papers filed on May 26, 2026, the notice of non-opposition filed on June 16,

2026, and the opposition brief filed on June 17, 2026. To date, no reply brief has been filed.

BACKGROUND

Factual Background

On August 22, 2024, plaintiff

John S. Clark ("Plaintiff") filed the Complaint against defendants McDonalds

Restaurants of California, Inc. ("McDonald's") and DOES 1 through 25. The Complaint includes the following causes

of action: (1) General Negligence and (2) Premises Liability.

On October 25, 2024,

McDonald's filed the Cross-Complaint against cross-defendants ROES 1 through

100. The Cross-Complaint includes the

following causes of action: (1) Indemnity; (2) Equitable Contribution; and (3)

Declaratory Relief.

On January 14, 2025,

McDonald's filed an amendment to the Cross-Complaint, identifying Southwest

Patrol, Inc. as ROE 1.

On April 30, 2025, Plaintiff

filed an amendment to the Complaint, identifying Unified Protective Services, Inc. ("UPS") as DOE 1.

LEGAL STANDARD

In an action in which it is

alleged that two or more parties are joint tortfeasors or co-obligors on a

contract debt, a party to that action may file a motion seeking a determination

from the court that the settlement between the plaintiff or other claimant and

one or more alleged tortfeasors or co-obligors was made in good faith. (Code Civ. Proc., § 877.6, subd. (a).) The notice of motion or application for good

faith determination must list each party and pleading or portion of pleading

affected by the settlement and the date on which the affected pleading was

filed. (Cal. Rules of Court, rule 3.1382.)

The California Supreme Court

in *Tech-Bilt, Inc. v. Woodward-Clyde & Assoc.* (1985) 38 Cal.3d 488 (*Tech-Bilt*),

established the standard for determining whether a settlement was made in good

faith. Under *Tech-Bilt*, the

following factors are considered: (1) a rough approximation of plaintiff's

total recovery and the settlor's proportionate liability; (2) the amount paid

in settlement; (3) the allocation of settlement proceeds among plaintiffs; (4)

a recognition that a settlor should pay less in settlement than he would if he

were found liable after a trial; (5) the financial conditions and insurance

policy limits of settling defendants; and (6) the existence of collusion,

fraud, or tortious conduct aimed to injure the interests of the non-settling

defendants. (Id. at pp. 498-501.) Additionally, the evaluation must be made

based on the information available at the time of settlement. (Id. at p. 599.)

Where good faith is contested,

the burden begins with the settlor to demonstrate the settlement. (City of Grand Terrace v. Superior

Court (1987) 192 Cal. App. 3d 1251, 1261 (City of Grand Terrace).) "Once there is a showing made by the settlor

of the settlement, the burden of proof on the issue of good faith shifts to the

non-settlor who asserts that the settlement was not made in good faith." (Id. at p. 1262; Code Civ. Proc., § 877.6,

subd. (d).) The nonsettlor should

demonstrate "that the settlement is so far 'out of the ballpark' in relation to

the [Tech-Bilt] factors as to be inconsistent" with a settlement made in

good faith. (Id. at p. 500.) Where good faith is not contested, a

"barebones motion which sets forth the ground of good faith, accompanied by a

declaration which sets forth a brief background of the case is

sufficient." (City of Grand Terrace,

supra, 192 Cal. App. 3d at p. 1261.)

A court must weigh the Tech-Bilt factors only when good faith is

contested. (Ibid.) "That is to say, when no one objects, the

barebones motion which sets forth the ground of good faith, accompanied by a

declaration which sets forth a brief background of the case is sufficient.” (Mediplex of California, Inc. v. Superior Court (1995) 34 Cal.App.4th 748, 753, fn. 4 (Mediplex).)

If the court makes a good

faith determination, the court may dismiss the settling party from comparative

indemnity claims if the settling party has made such a request at the time of

making the good faith motion. (Code Civ.

Proc., §§ 877, 877.6, subd. (c); Cal. Rules of Court, rule 3.1382.)

DISCUSSION

Cross-Defendant Southwest

Patrol, Inc. and Defendant McDonald's Restaurant of California, Inc. move for

an order recognizing their settlement with Plaintiff as a good-faith settlement

pursuant to California Code of Civil Procedure section 877.6. (Motion, p. 1:24-28.) However, the Court lacks jurisdiction to

grant this motion due to the automatic stay.

“With some exceptions, all

proceedings against the debtor and the debtor's property are stayed during the

pendency of the bankruptcy. (11 U.S.C. §

362(a)(1) & (2).) The automatic stay

is self-executing and is effective upon filing the bankruptcy petition. (See 11

U.S.C. § 362(a).) Any action, including

any judicial proceeding, taken in violation of the automatic stay is void. (In re Gruntz (9th Cir.2000) 202 F.3d

1074, 1082.)” (In re Marriage of

Sprague & Spiegel-Sprague (2003) 105 Cal.App.4th 215, 219.)

In the present case, UPS filed

a notice of stay of proceedings on May 29, 2026, which informed the Court that

an automatic stay is in effect due to a filing with the United States

Bankruptcy Court for the Central District of California. (Notice of Stay, pp. 1-2.) As granting the motion for a good-faith

settlement would be void in light of the automatic stay, the Court DENIES the

motion.

ORDERS

1) Cross-Defendant

Southwest Patrol, Inc. and Defendant McDonald's Restaurant of California,

Inc.'s Motion for Good Faith Settlement is DENIED.

2) Defendant

Unified Protective Services, Inc. is ordered to provide notice of this Court's ruling.

IT IS SO ORDERED.

DATED: June 23, 2026

Tamara

Hall

Judge

of the Superior Court